

		the Court's website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiffs' counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court's concerns cannot be filed by the pre-hearing deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs are ordered to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
112	Martinez vs. Horizon Lighting, Inc. 2024-01372183	Motion for Preliminary Approval Plaintiff Jonathan Arce's Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to October 22, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 1/12/2024, Plaintiff Daniel Martinez, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant Horizon Lighting, Inc. (ROA #2.) On 2/21/2024, Plaintiff filed a first amended complaint (FAC), adding a cause of action for PAGA penalties. (ROA #14.) On 3/20/2024, Defendant answered the FAC. (ROA #16.) On 11/20/2025, the operative complaint, i.e., the second amended complaint (SAC), was filed pursuant to the parties' stipulation filed on 10/30/2025 and the Court's order entered on 10/31/2025. (ROA #65.) The SAC added Arce as a named Plaintiff and alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #65.) On 12/11/2025, Defendant answered the SAC. (ROA #76.) On 4/14/2026, the Court granted Plaintiffs' counsel's motion to be relieved ss counsel to Plaintiff Martinez on 4/14/2026. (ROA #87.) The Court also set an OSC for 5/7/2026 as to why the Court should not strike Martinez's class claims and PAGA claims for failure to appear through counsel. (<i>Id.</i>) Martinez failed to appear himself or through counsel on 5/7/2026, so the Court found Martinez to be self-represented and that he is no longer permitted to serve as a class representative or otherwise act in a representative capacity for potential aggrieved employees under PAGA. (ROA #95.) On 5/26/2026, Plaintiff Arce filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the

Stipulation of Class and Representative Action Settlement (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$515,000. The GSA includes \$25,000 allocated for PAGA penalties.

The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted:

16. Counsel has failed to provide the court with a text-searchable settlement agreement in compliance with CRC 2.256(b)(3).
17. The Settlement Agreement provides at ¶ 48.ii that if a Class Notice is re-mailed to a Class Member less than ten (10) days prior to the Response Deadline, the Class Member shall have their Response Deadline extended by ten (10) days from the date the Settlement Administrator re-mails the Class Notice. However, all Class Members who receive remailed notices should be given an extension of all relevant deadlines of preferably at least 30 days from remailing.
18. In ¶ 47.b., the Aggrieved Employees’ Released Claims is defined as “any and all claims and/or causes of action under PAGA which are based upon the factual allegations set forth in the Operative Complaint and arising at any time during the PAGA Period.” However, this release should be reworded to release all claims that were or reasonably could have been asserted based on the facts alleged in the LWDA notice letter and Operative Complaint.

Class Counsel must also provide the Court with a revised Class Notice with the following revisions:

9. The notice should be revised so as to be consistent with the resolution of the issues identified above.
10. On p. 1, after the sentences, “Your legal rights are affected whether you act or not act. Read this Notice carefully,” another sentence should be added, also in bold: “You will be deemed to have carefully read and understood it.”
11. On p. 3, the notice includes a statement that “Plaintiff also believes the Settlement is in the best interests of all Class Members.” However, the Class Notice should “avoid any commentary on the merits of the settlement.” (Guidelines for Approval of Class Action Settlements & PAGA Settlements, ¶ I.C.35.)
12. Rather than having Class Members draft their own opt-out requests, objections, and workweek disputes, the Class Notice should include separate forms for each of these processes.
13. In addition to Class Counsel’s contact information, the notice should also provide (1) a URL to a website, maintained by the settlement administrator or plaintiff’s counsel, that has links to the notice and key case documents; and (2) for persons who wish to review the court’s docket for the case, the court’s URL.

14. The notice should specify that the judgment, “whether favorable or not,” will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).)

Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions:

10. The proposed order should be revised to incorporate the relevant revisions identified above, including attaching the revised Class Notice.
11. Attorney information must be deleted from the caption page.
12. The date for the preliminary approval hearing should be updated to reference the continued hearing date.
13. The proposed order states that the Settlement Agreement and Class Notice are attached as Exhibits A and B, but the attachments are missing. In any case, the proposed order should instead reference by name and ROA number all the declaration(s) to which the Settlement Agreement/Class Notice and any amendments thereto are attached.
14. The proposed order should also include the definitions for PAGA Aggrieved Employees and the PAGA Period.
15. The proposed order should specify the amounts proposed to be allocated from the GSA to attorneys’ fees, litigation costs, enhancement(s), administration costs, and PAGA penalties (including to the LWDA and to Aggrieved Employees).
16. All papers in support of the Motion for Final Approval must be filed at least sixteen (16) court days before the Final Approval hearing date.
17. The proposed order should specify the Court’s continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).

The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at <https://voypubapps.occourts.org/complex-civil-calendar>.

Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court’s concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.